

TRANSFER RISK ASSESSMENT

Controller: Ashfield Trading Limited (company number 16358723). Assessment date: 26 August 2026.
Review date: 26 August 2027, or earlier on any material change.

This assessment follows the structure of the Information Commissioner's transfer risk assessment tool. It supports the restricted transfer made under the international data transfer agreement between Ashfield Trading Limited (the "Exporter") and Aswatax Ltd (the "Importer").

Question 1: What are the specific circumstances of the restricted transfer?

The Importer is a company registered in England and Wales (number 12923632) receiving enquiry referrals under a data sharing agreement and a referral agreement with the Exporter. Its relevant personnel, including its director, are ordinarily resident in the Kingdom of Saudi Arabia and access the referred data from there. The data is held in systems hosted in the United Kingdom or the European Economic Area; the transfer takes the form of remote access from Saudi Arabia rather than bulk export or local storage of the dataset.

The data transferred per enquiry is: name, telephone number, email address, the enquiry message and its classification, self selected role, rough geographic area, any company name given, verification detail, follow up responses, any booked callback time, and source and record metadata. It is ordinary personal data about people who have asked for professional tax or accounting help. No special category data or criminal offence data is intended to be collected or transferred, and enquiry forms are designed to avoid it.

Volume is low: individual enquiries referred one at a time as they arise. Retention by the Importer is limited by the data sharing agreement to what is necessary for responding to the enquiry or the resulting engagement.

Question 2: What is the level of risk to people in the personal information being transferred?

Low. The data is contact and enquiry information volunteered by adults seeking commercial professional services. It does not include financial account credentials, identity documents, health information or data about children. The realistic harms if it were disclosed are unwanted contact and minor loss of privacy, not physical, financial or reputational damage of any severity. The people concerned expect their details to be passed to a professional firm; that is the purpose of their enquiry, and the sharing is disclosed to them at the point of collection with a right to object.

Question 3: Is the transfer significantly increasing the risk of a human rights breach in the destination country?

No, for these reasons taken together.

First, the Importer is a UK established company and remains directly subject to the UK GDPR and to the jurisdiction of the courts of England and Wales for its processing of this data. Data subjects can enforce their rights against a UK entity through UK routes regardless of where its personnel sit, which removes the usual enforceability gap that drives risk in a third country transfer.

Second, the data stays in UK or EEA hosted systems and is accessed remotely. There is no local dataset in Saudi Arabia for a third party or public authority to seize, and the international data transfer agreement's security requirements prohibit maintaining a separate local copy.

Third, the nature of the data gives it negligible intelligence or surveillance value. It is routine commercial enquiry data about UK tax matters. The likelihood of Saudi public authority interest in it is remote, and even in the event of access the harm to the people concerned would be low, as assessed at question 2.

Fourth, Saudi Arabia has an operative data protection statute, the Personal Data Protection Law, in force since September 2023 and enforced from September 2024. It is not relied on as equivalent protection, but it indicates a functioning legal framework rather than an absence of one.

Weighing likelihood and severity together, the transfer does not significantly increase the risk to the people whose data is transferred, provided the conditions below hold.

Conclusion and conditions

The transfer may proceed under the international data transfer agreement. The conclusion depends on the following, which are also obligations in the transfer agreement and the data sharing agreement:

1. The referred data remains hosted in the United Kingdom or the European Economic Area and is accessed remotely, with no separate local copy of the dataset maintained in Saudi Arabia.
2. The Importer remains a UK registered company subject to the UK GDPR for this processing.
3. The data remains limited to the fields in the data sharing agreement's data specification, with no special category or criminal offence data.
4. Access is protected by unique credentials and multi factor authentication, and transmission is encrypted.
5. Any personal data breach is notified between the parties without undue delay and within 24 hours.

If any of these ceases to hold, or if the character or volume of the data changes materially, this assessment must be redone before further transfers.

Assessed by: Mohammed Junayd Moughal, Director, Ashfield Trading Limited.